

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Carter v. A-Plus Real Estate Management, Inc., et al.***
Superior Court Case No. 23CECG05044

Hearing Date: September 24, 2026 (Dept. 503)

Motion: Default Prove-Up

Tentative Ruling:

To deny.

Explanation:

Plaintiff asserts various claims against A-Plus Real Estate Management, Inc., dba A+ Property Management, run and managed by the various individual defendants. Plaintiff alleges that he and his mother contracted with A-Plus to manage their rental properties and collect rents. In November of 2022 A-Plus ceased depositing rents into plaintiffs' bank account, stealing the money. Plaintiffs assert various causes of action, including theft pursuant to Penal Code § 496(c), breach of contract, fraud and conversion.

All defendants have either been dismissed or defaulted, having failed to respond to the complaint. Default judgment must be denied, however, for two reasons.

Plaintiff seeks \$15,187.50 in attorney fees pursuant to Penal Code section 496(c) and Welfare and Institutions Code section 15657.5(a). Attorneys John Migliazzo and Jordan Scrivner seek fees at "fair market value" billing rates of \$450 and \$300 per hour respectively. However, they do not state whether these are the rates their time is actually billed to their client, or if they are working on a contingency basis (in which case they would not have real billing rates). Counsel should clarify this in any future submission. The court generally finds the reasonable hourly rate to be the rate the client actually pays, if there is a paying client.

The primary problem with the application is that no actual evidence of plaintiff's damages is submitted.

The court is required to render default judgment only "for that relief ... as appears by the evidence to be just." (Code Civ. Proc., § 585, subd. (b).) Therefore, it is up to plaintiff to "prove up" the right to relief, by introducing sufficient evidence to support plaintiff's claim. Without such evidence, the court may refuse to grant a default judgment for any amount, notwithstanding defendant's default. (*Taliaferro v. Hoogs* (1963) 219 Cal.App.2d 559; *Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434-1435 [trial court did not err in refusing to enter default judgment for pro per plaintiff who failed to submit appropriate supporting documentation].) Prima facie evidence of damages is required. (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 288.) The facts stated in the declaration shall be within the personal knowledge of the affiant and shall be set forth

with particularity, and each affidavit shall show affirmatively that the affiant, if sworn as a witness, can testify competently thereto." (Code Civ. Proc., § 585, subd. (d).)

Here, plaintiff merely states,

... Mr. Carter is owed approximately \$7,140 in rent collected but not received, \$2,400 in tenant security deposits, and \$1,200 in reserve funds, for a total of \$10,740, The Trust is owed approximately \$47,963.54 in rent collected but not received and \$10,310 in tenant security deposits across four properties, for a total of \$58,273.54.

(Carter Dec., ¶ 13.)

Simply stating in a declaration "defendant owes me \$X" is not adequate. Plaintiff must submit admissible documentary evidence establishing the amounts owed by A-Plus.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/21/2026 .
(Judge's initials) (Date)